REPORTABLE (31)

KANGAUSARU INVESTMENTS (PRIVATE) LIMITED
v
(1) JULIAN FITZJAMES BOWL (2) OLIVER JULIAN BOWL (3) THE SHERIFF OF THE HIGH COURT

SUPREME COURT OF ZIMBABWE
UCHENA JA, KUDYA JA & MAFUSIRE AJA
HARARE: 19 JANUARY 2026 & 18 MAY 2026

R.H. Goba, for the appellant

T. Mpofu, for the first and second respondents

No appearance for the third respondent

MAFUSIRE AJA:

INTRODUCTION

[1] This is an appeal against the whole judgment of the High Court of Zimbabwe ("the court *a quo*") sitting at Harare, handed down on 1 July 2025. In the judgment, the court *a quo* granted an application by the first and second respondents ("the respondents") for the eviction of the appellant, and all those claiming occupation through it, from certain premises known as Unit 8 at Stand 75 Roberts Drive, Msasa, Harare ("the premises"). The order of eviction also awarded the respondents vacant possession of the premises and directed the appellant to remove all its equipment within seven days of the order. The third respondent is the Sheriff for Zimbabwe.

THE FACTS

[2] The premises are a unit or factory bay, carved out of a much bigger property ("the parent property"). There are several other such units which are owned and occupied by different other entities.

[3] At all relevant times the appellant was a shareholder in Roberts Drive Investments (Pvt) Ltd ("Roberts Drive Investments"), the owner of the parent property. In terms of an occupation agreement between the appellant and Roberts Drive Investments, the appellant took occupation of the premises on 31 July 2012. On 12 December 2020, Roberts Drive Investments issued to the appellant a share certificate number 25 in respect of the premises, giving it the right of ownership of the premises through sectional title.

[4] Ownership of a section or unit of an immovable property through sectional title is an arrangement which is governed by s 27 of the Deeds Registry Act [*Chapter 20:05*]. In terms of this provision, and in summary, the owner of a piece of land who wishes to transfer to one or more persons undivided shares in the property, coupled with exclusive rights of occupation, registers a notarial deed against the title deed of that land, specifying, among other administrative requirements, the number of shares created and the distinct identity numbers for such shares corresponding to the individual units created. Sectional title confers real rights in such individual units.

[5] The rights and obligations of the individual owners of premises through sectional title are governed by both the notarial deed, the articles of association of the property-owning company and the customized agreements of occupation of the individual units.

[6] In the present case, in terms of the occupation agreement, the appellant was obliged, among other things, to pay promptly all the levies as might be prescribed, and all the utility bills relative to its occupation of the premises, failing which it could ultimately forfeit its shares.

[7] At all relevant times, the first respondent was the company secretary for Roberts Drive Investments. The second respondent is his son.

PROCEEDINGS IN THE COURT *A QUO*

[8] Before the matter which is the subject of the present appeal, there were three other sets of proceedings in the court *a quo* in respect of the premises. In the first set of such proceedings, Roberts Drive Investments obtained an order by consent on 4 June 2021, under case number HC 662/21, giving it the right to sell the appellant's shares in order to recover arrear levies, rates and other charges which it owed, all amounting to ZW$200 182.85.

[9] Following that order, and a written offer to purchase by the respondents, Roberts Drive Investments, through the Chairman of the Board of Directors, allegedly in terms of the powers vested in the Board by the articles of association and the notarial deed, proceeded to sell the appellant's shares to the respondents. A new share certificate number 27 was issued to them.

[10] The second set of such proceedings in the court *a quo* was an urgent chamber application by the appellant under case number HC 3179/21. The interim relief sought was an interdict against Roberts Drive Investments and the respondents to stop them from proceeding with the transfer of the appellant's shares and to restrain them from evicting it from the premises. The final order sought the setting aside of the sale of the appellant's shares on 4 June 2021 as aforesaid.

[11] The urgent chamber application was adjudged to be not urgent. It was removed from the roll. It was subsequently abandoned.

[12] The third set of such proceedings in the court *a quo* was a vindicatory application by the respondents against the appellant in case number HC 4426/21. The application was based on the share certificate held by the respondents, following the sale of the appellant's shares on 4 June 2021 as aforesaid. The respondents sought the eviction of the appellant from the premises.

[13] However, the respondents' application under HC4426/21 was dismissed. They appealed to this Court under case number SC 157/23. The appeal succeeded. The judgment of the court *a quo* was set aside and the matter remitted for hearing before a different judge.

[14] The fourth set of proceedings in the court *a quo* was the case the judgment of which is the one under appeal in this case. Under case number HC 4426/21, the respondents brought the same vindicatory proceedings against the appellant. Apparently on remittal, the same record of proceedings in HC 4426/21 was used.

[15] In the court *a quo*, the respondents alleged that as the proceedings were a *rei vindicatio*, they needed to show no more than that they were the owners of the premises and that the appellant was in occupation without their consent. In support of their application, the respondents produced, among other documents, share certificate number 27 in relation to the premises which was in their name.

[16] In opposing the application, the appellant, among other things, accused the respondents of fraudulent conduct in the sale of its shares. Producing its own share certificate number 25, which it claimed had never been cancelled, it resisted the relief sought on the basis that the circumstances of the case amounted to a double sale situation in which case its position should be adjudged to be the stronger of the two, given that its purchase of the shares had been first in time.

[17] The court *a quo* accepted the argument by the respondents that the appellant had abandoned the urgent chamber application in which the issue of the ownership of the shares could have been properly ventilated, and the fact that since the appellant had filed no counter-claim, it could not obtain relief because its notice of opposition, like a plea, was no more than a shield of defence and not a weapon or sword. In this regard, the court *a quo* relied on the judgment of this Court in *Lonrho Logistics (Pvt) Ltd* v *Ram Petroleum (Pvt) Ltd* SC 50/22, particularly the passage at p 13 that:

> "The point is made in *Indium Investments (Pvt) Ltd* v *Kingshaven (Pvt) Ltd & Anor* 2015 (2) ZLR 40 (S) at 44F that:
>
> > 'A plea is a defence and as such can be likened to a shield. It is not a weapon or a sword. No relief can attach to a party through a plea.'"

[18] The court *a quo* decided that the respondents had title to the premises, that the title was *perfecta* and that the appellant's occupation, being without their consent, the respondents' right to vindicate the premises had properly been established. It proceeded to issue the relief sought.

GROUNDS OF APPEAL AND RELIEF SOUGHT

[19] The appellant has appealed on eight (8) grounds as follows:

(i) The court *a quo* in its evaluation and assessment of the evidence failed and/or neglected to consider all the issues that were raised by the appellant and debated by the parties which had a bearing on the validity of the transaction of sale, purchase and transfer of shares and the issuance of a share certificate to the respondents while the share certificate issued to the appellant in respect of the same shares was *extant*;

(ii) *A fortiori*, the court *a quo* erred and/or misdirected itself in ignoring and/or failing and/or neglecting to consider and/or to give due weight to the evidence that

showed that there had been a simulated, fraudulent and therefore invalid transaction to divest the appellant of its shares and ownership in Roberts Drive Investments (Pvt) Ltd;

(iii) The court *a quo* erred and/or misdirected itself in law in holding that the first and second respondents had acquired valid title to the shares and therefore the right of occupation of the immovable property concerned;

(iv) Further and/or alternatively, the court *a quo* erred and/or misdirected itself in ignoring the effect in law, of the evidence of competing ownership claims to the shares exhibited by the two share certificates which showed that the appellant's share ranked superior in title to that of the respondents and was therefore valid, absent a lawful cancellation.

(v) Furthermore, and/or alternatively, the court failed to appreciate the fact that there were material disputes of fact which could not be resolved on the papers, the respondents having elected to proceed by way of application rather than action in the full knowledge of the existence of such disputes;

(vi) Furthermore, and/or alternatively, the court *a quo* misdirected itself and/or erred in misconstruing the evidence and making findings of fact that were not borne out by the evidence, thereby rendering a judgment which could not be reasonably entertained;

(vii) The court *a quo* erred and misdirected himself *(sic)* in drawing conclusions of law based on incorrect findings of fact; and

(viii) The court *a quo* erred in holding that the appellant should have pursued the application that it had abandoned and in relying on such abandonment as reason for holding against it when the said case had only been admitted for reference

and did not form part of the respondents' cause of action as contained in their founding affidavits.

[20] The appellant sought the following relief:

(i) That the instant appeal succeeds;

(ii) That the judgment of the court *a quo* under case number HCH 4426/21 be set aside and substituted with the following:

"The application is dismissed with costs."

[21] The respondents vehemently opposed the appeal. In their heads of argument, they took a number of points *in limine*. These are summarised as follows:

(i) That the appeal is fatally defective for want of compliance with r 58(2) of the Supreme Court Rules in that the appellant failed to serve the respondents with its heads of argument immediately after filing them;

(ii) That in seeking the substitution of the judgment *a quo* with dismissal, the appeal sought an imprecise, incompetent and incompatible relief;

(iii) That where an appeal alleges a failure by a court to consider factual findings or issues, the proper remedy is a remittal of the matter, not a substitution by the appellate court;

(iv) That all the eight grounds of appeal are incurably vague and embarrassing in violation of r 51 of the Supreme Court Rules, in that having generally complained that the court *a quo* was wrong or that it should have accepted the appellant's version, the basis for such complaint is not particularised, the wrong finding of fact or law and the material disputes of fact not identified;

(v) That the eight grounds of appeal, spanning over five (5) pp, are voluminous and repetitive and that they demonstrate an attempt at asking the appellate court to re-open the proceedings *a quo* and conduct a new determination of the matter.

PROCEEDINGS BEFORE THIS COURT

[22] At the start of the appeal hearing, the appellant's counsel, Mr *Goba*, took a preliminary objection, outside his heads of argument, that the proceedings in the court *a quo* failed to comply with the order of remittal by this court in SC 157/23 which required a fresh determination before a different judge but that the court *a quo* had instead proceeded on the same record from a previous hearing, thereby undermining the requirement for a hearing *de novo*.

[23] Upon Mr *Goba's* concession that such an objection had never been raised in the court *a quo*, and upon noting that the record of proceedings in question had been introduced in the new hearing by the consent of the parties, the Court dismissed the appellant's preliminary objection and directed that the case should proceed on the merits, after the respondents had abandoned all their points *in limine*.

[24] On the merits, and in summary, the appellant argued, firstly, that its share certificate in respect of the premises, coupled with the concomitant right of occupation, had never been cancelled. Secondly, that the purported forfeiture and sale of its shares to the respondents was an unlawful insider arrangement between conflicted parties given that the first respondent was, at the relevant time, a director-cum secretary of Roberts Drive Investments. Lastly, that, at any rate, such a sale amounted to an act of self-help in that while it was purportedly in execution of an earlier judgment of the court *a quo*, the third respondent, who is the court official reposed with the power to execute judgments of the courts, had not been involved.

[25] The appellant further argued that by predicating its decision on the fact that the appellant had abandoned its application for an interdict and that it had failed to file a counter-claim, the court *a quo* manifestly misdirected itself because the appellant, in resisting the respondents' claim for eviction, could simply rely on its share certificate and the agreement of occupation, none of which had been cancelled.

[26] In reply, Mr *Mpofu*, for the respondents, argued that the appellant's failure to pay the levies and the bills relating to the premises triggered a process for forfeiture under clause 11 of the occupation agreement, as read together with the articles of association for Roberts Drive Investments. He argued that the right to sell stemmed from the contractual rights and obligation of the parties which was confirmed by the earlier order of the court *a quo,* and that this did not require the involvement of the Sheriff. He further argued that the respondents held a valid share certificate which was sufficient for the purposes of a *rei vindicatio.*

ISSUES FOR DETERMINATION

[27] Despite the multiple grounds of appeal and the lengthy submissions by the parties, it is the considered view of this Court that the crisp issue for determination in this appeal is whether or not the earlier order by consent of the court *a quo* in HC 662/21 granting Roberts Drive Investments the right to sell the appellant's shares in relation to the premises was self-executing and obviated any further involvement of the appellants or the third respondent.

[28] Determination of the crisp issue above necessarily resolves the other attendant issues such as whether or not the court *a quo* failed to properly evaluate the validity of the sale and transfer of the appellant's shares and the subsequent issuing of share certificate

number 27 to the respondents, and whether or not there were such material disputes of facts as were incapable of resolution on the papers.

ANALYSIS AND SYNTHESIS

[29] One of the tenets of the law of contract is that the traditional function of the courts is merely to enforce the contract between the parties. The contract is the agreement or the bargain by persons of legal capacity with self-autonomy, with the ability to regulate their own affairs, even to their own detriment. This is said to be the very essence of freedom and a vital part of dignity. In *Barkhuizen* v *Napier* 2007 (5) SA 323 (CC), the Constitutional Court of South Africa put it as follows, at para 57:-

> "The first question involves the weighing-up of two considerations. On the one hand public policy, as informed by the Constitution, requires in general that parties should comply with contractual obligations that have been freely and voluntarily undertaken. This consideration is expressed in the maxim *pacta sunt servanda*, which, as the Supreme Court of Appeal has repeatedly noted, gives effect to the central constitutional values of freedom and dignity. Self-autonomy, or the ability to regulate one's own affairs, even to one's own detriment, is the very essence of freedom and a vital part of dignity. The extent to which the contract was freely and voluntarily concluded is clearly a vital factor as it will determine the weight that should be afforded to the values of freedom and dignity. The other consideration is that all persons have a right to seek judicial redress."

[30] In his doctoral thesis titled *The basis of contractual liability (1): Ideologies and approaches*, 2005 (68) THRHR 253, at 255 – 256, CHRIS JAMES PRETORIUS makes the point that since contractual obligations are essentially incurred through the voluntary choice of the parties involved, the court's role is largely facilitative in that it merely gives effect to the intentions of the parties. The courts will not get involved in the debate relating to the fairness or otherwise of the parties' bargain. A contractant should receive the performance he or she bargained for.

[31] The above stipulations are part of our law. In *Book* v *Davidson* 1988 (1) ZLR 365 (S) at pp 378G-379A this Court stated as follows:

"JESSEL MR made the point in *Printing and Numerical Registering Co* v *Sampson* (1875) LR 19 Eq 462 by saying at p 465:

> '(1) If there is one thing which more than another public policy requires, it is that men of full age and competent understanding shall have the utmost liberty of contracting, and that their contracts when entered into freely and voluntarily shall be held sacred and shall be enforced by courts of justice. Therefore you have this paramount public policy to consider – that you shall not lightly to interfere with this freedom of contract.'"

[32] In *Magodora & Ors* v *Care International Zimbabwe* 2014 (1) ZLR 397 (S) it was stated as follows, at p 403C:

> "In principle, it is not open to the courts to rewrite a contract entered into between the parties or to excuse any of them from the consequences of the contract that they have freely and voluntarily accepted, even if they are shown to be onerous or oppressive. This is so as a matter of public policy."

APPLICATION

[33] Verbatim, the operative part of the order of the court *a quo* in HC662/21 granting the authority to sell the appellant's shares in the premises, read as follows:

> "2. The applicant is entitled to sell 3000 Class F shares held by the first respondent under share certificate number 25 in order to liquidate arrear levies, rates and other charges owed by the first respondent in the amount of ZW$200 182.85 arising from the first respondent's occupation of Unit 8, Roberts Drive, Msasa, Harare." (Emphasis added)

[34] The above order of the court *a quo* was predominantly, ***not*** a judgment sounding in money. It merely declared the right and power reposed in Roberts Drive Investments to sell the appellant's shares for the purpose intended. The order did not prescribe any conditionalities. Evidently, the parties would then proceed in terms of their rights and obligations as flowing from the contractual arrangements binding them. It was not an order such as would lead to a sale in execution.

[35] Article 13*ff* of the articles of association of Roberts Drive Investments, a company in which the appellant was contractually an owner of the shares, coupled with rights of occupation of a factory unit, and subsequently the owner of the unit through sectional title, read as follows:

> "13. The Directors may, on fourteen (14) days' notice in writing, from time to time make calls upon members in respect of any monies unpaid on their shares. Every call shall be paid to the Company by the registered owner on or before the date of the call, at the time and place specified therein. … …
>
> 14. …
>
> 15. …
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> 16. Should a call not be paid by or on due date, the Directors may declare the share on which it was made to be forfeited, whereupon the Directors may deal with and transfer it in any manner and to any person they think fit …
>
> 17. A forfeiture declaration shall terminate all the registered owner's rights in the shares involved, but that owner shall remain liable for any amount due by him to the Company at the date of termination until the Company receives payment in full of the nominal amount of the shares.
>
> 18. A written declaration by a Director of the Company that a share in the Company has been forfeited on a stated date shall be conclusive proof of the facts therein stated as against all persons claiming rights in or to the share.
>
> 19. …
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> 20. <u>The aforegoing forfeiture provisions shall apply to the non-payment of any sum which may have become due to the Company on any share in any other way as if it had become due under a call</u>.
>
> 21. …
>
> 22. The Company may sell any shares … … on which monies are actually due to it, but only after the expiry of ten (10) days' written notice to the owner demanding payment of the amount due, and may authorise any person to transfer to the buyer any shares so sold. <u>The buyer shall be registered as the owners of such shares, and title thereto shall not be affected by any irregularity or invalidity in such sale</u>. The proceeds of such sale shall be paid to the Company and applied in payment of the amount then due ….and only thereafter shall the balance be paid to the owner as at the date of sale of the shares." (Emphasis added)

[36] Unequivocally, the power to sell a shareholder's equity upon certain procedures being followed, was reposed in the Directors of the company, Roberts Drive Investments.

[37] Clause 11 of the occupation agreement between the appellant, as "Occupier", and Roberts Drive Investments, as "Owner", read as follows:

> "In the event the Occupier shall fail to pay any levies and any other amounts due by the Occupier relating to his occupation of the factory bay above described, which shall include any amount due by the Occupier in respect of mortgage repayments, levies, Municipal charges including water and any other amounts and shall fail to effect such payment within a period of three months after having been given written notice to that effect by the Directors then the Occupier shall forfeit his shares. In such event the Directors shall be entitled to sell such shares to any person willing to purchase same for such amount as may be reasonably assessed as the sale value thereof. In such event the Directors shall be entitled to evict the Occupier or any person holding rights of occupation through him from the factory bay aforesaid. On receipt of payment for the shares the Directors shall first settle any outstanding amounts due by the Occupier in respect of his occupation and thereafter pay the balance to the Occupier after payment of any costs and other expenses."

[38] It was common cause that at all relevant times the appellant was in arrears with levies and utility bills in respect of the premises and that despite calls to make good its default it remained in breach.

[39] It was under such a contractual conspectus as set out above that Roberts Drive Investments took legal action in HC 662/21 for the recovery of the outstanding amounts due by the appellant. In the original draft order, apart from seeking an order for the payment of the outstanding amount, Roberts Drive Investments also sought an order declaring the appellant's shares specially executable. In their opposition to the urgent chamber application in HC 3179/21, the respondents averred in part that only such an order would have been subject to a Sheriff's sale but that the order had been purposefully and deliberately amended with the consent of the appellant to empower Roberts Drive Investments to sell the shares itself. This has not been controverted.

[40] Thus, when it sat to determine the matter afresh, following the remittal order by this Court, the court *a quo* had all the above information from the records of the previous proceedings which had been availed to it by the consent of all parties.

[41] Mr *Goba* argued that the sale of the appellant's shares in the manner it was done was fraudulent and that it amounted to self-help. He further argued that the sale was invalid for the reason that the third respondent, as the official reposed with the power to execute all judgments of the superior courts, was deliberately left out in the process. He referred to the High Court Rules, 2021 on sales in execution.

[42] Rule 69(1) of the High Court Rules reads:

> "The process for the execution of any judgment for the payment of money, for the delivery of money, for the delivery up of goods or premises, or for ejectment, shall be by writ of execution signed by the registrar and addressed to the sheriff, in accordance with one or other of Forms Nos. 32 to 39." (Emphasis added)

[43] Similarly, s 20(1) of the High Court Act (*Chapter 7:06*) provides as follows:

> "Subject to section nineteen and to rules of court, the Sheriff shall, by himself or his deputy or an assistant deputy, execute all sentences, decrees, judgments, writs, summonses, rules, orders, warrants, commands and other process of the High Court, and shall make a return thereof to that court, together with the manner of the execution thereof."

[44] Plainly, the sale of the appellant's shares was not one governed by the High Court Rules relating to the execution of judgments for the payment of money. It was one governed by the contractual arrangements of the parties. The Court needs not be detained by the appellant's allegations of fraud. Nothing was produced to support such a serious allegation beyond the complaint that the sale of the shares was conducted by persons who were allegedly conflicted. However, given the material on record, such an allegation lacks any factual foundation.

[45] Regarding the provisions of the High Court Act and Rules in relation to sales in execution, Mr *Goba's* argument misses the point that the entire contractual arrangement between the parties was one specifically sanctioned and regulated by s 27 of the Deeds Registries Act which governs ownership of real rights in land through sectional title. In particular, s 27(1) of that Act provides in part as follows:

> "(1) Subject to the provisions of this section, if—
>
> (a) the owner of a piece of land in an urban area wishes to transfer to one or more persons an undivided share in the land coupled with an exclusive right of occupation; or
> (b) … … …;
> the owner … … shall register against the title to the land concerned a notarial deed which—
>
> (i) specifies the number of undivided shares created or to be created which will be coupled with an exclusive right of occupation; and
>
> (ii) clearly indicates which buildings or portions of any building erected or to be erected on the land concerned, either with or without any area of ground, shall be subject to an exclusive right of occupation; and
>
> (iii) clearly indicates by means of distinctive numbers which shares referred to in subparagraph (i) are coupled with which buildings or portions of a building referred to in subparagraph (ii); and
>
> (iv) defines the reciprocal rights and obligations applicable to the owners of the undivided shares; and
>
> (v) provides for the administration and maintenance of the land concerned and buildings thereon and the liability for rates, expenses and charges relating thereto; and
>
> (vi) subject to subsection (3), provides for the manner in which the notarial deed may be amended.
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> (2) The provisions of a notarial deed registered in terms of subsection (1), as amended from time to time, shall be binding on all owners of undivided shares in the land concerned and on their successors in title." (Emphasis added)

[46] Demonstrably, the whole process of establishing and conferring sectional title on land, the rights and obligations of the parties thereto, the administration of the land, and other

matters incidental thereto, are all governed by the above provision of the Deeds Registries Act. What is critical is that all these issues are governed by contract.

[47] It follows that when in earlier proceedings in the court *a quo*, the parties consented to the order that the court eventually issued on 4 June 2021 in HC 662/21, among other things, granting Roberts Drive Investments the right to sell the appellant's shares, the parties would then proceed in terms of their rights and obligations as were set out in the contractual documents and the provisions highlighted above. The order by consent was no longer one the execution of which required the involvement of the third respondent.

[48] Article 22 of the articles of association aforesaid unequivocally provided that title to the shares acquired by a buyer would not be affected by any irregularity or invalidity in the antecedent sale.

[49] Furthermore, and at any rate, sales of property attached in execution of judgment debts, which was not the case in the present matter, may even legitimately be conducted by private treaty. Rule 70(11) of the High Court Rules aforesaid, provides as follows:

> "Unless the court or a judge otherwise directs or the parties agree to the contrary, any movable property sold in execution shall be sold publicly and for ready money by the Sheriff to the highest bidder through an electronic auction system as may be advantageous for the sale thereof and the said Sheriff shall publish notice of sale in a newspaper circulating in the country and the IECMS website."

[50] The argument that the circumstances of the case disclosed a double sale situation in which event the first sale in time would prevail is not correct in the circumstances of this case. By operation of the law, and in terms of the contractual documents governing the rights and obligations of the parties, the transfer of the appellant's shares to the respondents automatically cancelled any such rights and privileges as it previously enjoyed in relation to them. Among other things, the physical issuing of a new share certificate in favour of

the respondents, and the actual cancellation of the old one in the name of the appellant would be matters of administration and house-keeping.

DISPOSITION

[51] The manner in which the court *a quo* substantively disposed of the dispute in this matter cannot be faulted. However, it was an apparent misdirection by the court to base its decision on the appellant's failure to prosecute to finality the urgent chamber application under HC317/21 and its failure to file a counter-claim, and referring to a plea or notice of opposition as being shields of defence, not weapons or swords. Substantively, these aspects had no bearing on the rights and duties of the parties as stemming from the bundle of documents filed *a quo*. The misdirection does not affect the substantive disposition of the dispute by the court *a quo*.

[52] The appeal has no merit. It is liable to be dismissed. There is no reason why the costs should not follow the result. In the premises, the following order is hereby made:

"The appeal be and is hereby dismissed with costs."

UCHENA JA : I agree

KUDYA JA : I agree

Ziumbe & Partners, appellant's legal practitioners.

Dhaka, Lightfoot & Stone, 1st & 2nd legal practitioners.